

2026:PHHC:086881-DB



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRWP-6600-2026
DECIDED ON:08.06.2026**

SUKHCHAIN SINGH**.....PETITIONER****VS.****STATE OF PUNJAB AND ORS****.....RESPONDENTS****CORAM: HON'BLE MR.JUSTICE SANDEEP MOUDGIL****CORAM: HON'BLE MS.JUSTICE NEERJA K. KALSON**

Present: Mr. Rahul Kadian, Advocate
for the petitioner

Mr. Gorav Kathuria, DAG Punjab

SANDEEP MOUDGIL, J (ORAL)

1. The jurisdiction of this Court has been invoked under Article 226 of the Constitution of India with a prayer for the granting of emergency/ medical parole for a period of 4. months on medical grounds/ humanitarian grounds, as the petitioner is suffering from serious psychiatric ailment i.e. Schizophrenia as mentioned in Annexure P-1, in accordance with the entitlement under Section 3 (1) (d) of Punjab Good Conduct Prisoners (Temporary Release) Act, 1962 and Amendment Act, 2015, hereinafter called as "The Parole Act' for better medical care and treatment for his ailment.

2. Learned counsel for the petitioner contends that the petitioner is suffering from serious psychiatric ailment and is undergoing continuous treatment at PGIMER, Chandigarh, where he has been prescribed medicines such as

Clozapine, Clonazepam and Trifluoperazine, which require strict monitoring, regular administration and special care. It is submitted that the petitioner's health condition deteriorates whenever he is incarcerated, as the prescribed treatment regimen, including weekly CBC tests and constant supervision by family members, cannot be effectively ensured in jail. Learned counsel further submits that one of the prescribed medicines contains a psychotropic substance and its possession within the prison environment poses security concerns and may expose the petitioner to danger from other inmates.

3. It is argued that despite specific medical advice, the petitioner has not been taken to PGIMER, Chandigarh for follow-up treatment. Counsel also submits that the petitioner has a small family comprising only his wife and a four-year-old child, who are dependent upon him, and that the Gram Panchayat has recommended his release on humanitarian grounds while certifying that his release would not pose any threat to public peace or security. On these premises, it is prayed that the petitioner be granted parole/interim release on medical and humanitarian grounds.

4. Short reply filed by way of an affidavit of Manjit Singh Sidhu, Superintendent, Central Jail, Ferozepur on behalf of respondents No.1 to 3 is taken on record. Custody Certificate of the petitioner also produced by learned State counsel, which is taken on record.

5. The relevant para of the same reads as under:-

“That the petitioner has filed the instant petition seeking granting of emergency/medical parole for a period of 4 months on medical grounds, as the petitioner is suffering from mental illness ‘Schizophrenia’ as mentioned in Annexure P-1 in accordance with the entitled under Section 3(1) (d) of the Punjab Good Conduct Prisoners (Temporary Release) Act, 1962 and Amendment Act, 2015, hereinafter called as “The Parole Act” for better medical care and treatment for his ailment”.

6. Having heard learned counsel for the parties and upon perusal of the material placed on record, this Court finds that it is not disputed that the petitioner is suffering from schizophrenia and is undergoing treatment at PGIMER, Chandigarh. The medical record placed on file reveals that he has been prescribed specialised psychiatric medication requiring regular monitoring, including periodic blood investigations and continuous medical supervision.
7. Considering the nature of the ailment, the requirement of consistent follow-up treatment, and the humanitarian circumstances pleaded on behalf of the petitioner, this Court is of the view that a case for temporary release on medical grounds is made out. Further, there is nothing on record to indicate that the release of the petitioner for a limited period would be prejudicial to public peace, safety or security.
8. Accordingly, the petitioner is directed to be released on parole for a period of two months commencing from 09.06.2026, subject to furnishing the requisite bonds to the satisfaction of the Chief Judicial Magistrate/Duty Magistrate concerned.
9. The petitioner shall surrender before the Jail Authorities on or before 5:00 PM on 07.08.2026.
10. The petition is disposed in the aforesaid terms.

(SANDEEP MOUDGIL)
JUDGE

(NEERJA K. KALSON)
JUDGE

08.06.2026

Meenu

- 1. Whether speaking/reasoned?*
- 2. Whether reportable?*

Yes/No
Yes/No